

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samuel Ross	Team: Squad #01	CCRB Case #: 201601417	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 02/16/2016 8:56 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/16/2017	Precinct: 46		
Date/Time CV Reported Tue, 02/16/2016 9:17 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 02/22/2016 11:13 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Tricia Grant	16810	944610	046 PCT
2. POM Rayon Grant	11238	934958	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Patrick Fyvie	3501	938513	046 PCT
2. POM Jason Levy	11937	956841	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Tricia Grant	Abuse: Police Officer Tricia Grant threatened to notify the Administration for Children's Services.	A . Substantiated
B . POF Tricia Grant	Discourtesy: Police Officer Tricia Grant spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM Rayon Grant	Abuse: Police Officer Rayon Grant entered § 87(2)(b) in the Bronx.	C . Substantiated

Case Summary

§ 87(2)(b) filed this complaint with IAB on February 16, 2016. The complaint was filed under original log #16-5547 and then referred to the CCRB, where it was received on February 22, 2016.

At approximately 6:20 PM on February 16, 2016, § 87(2)(b) arrived at the home of his girlfriend, § 87(2)(b) located at § 87(2)(b), in the Bronx. § 87(2)(b) resided there with her two children, aged § 87(2)(b) and § 87(2)(b) respectively. § 87(2)(b) lived on the opposite side of the same building. § 87(2)(b) was not home at the time. When § 87(2)(b) arrived in the hallway of § 87(2)(b)'s apartment, § 87(2)(b)'s ex-boyfriend, § 87(2)(b), confronted § 87(2)(b). § 87(2)(b) lunged at § 87(2)(b) with a knife, missed § 87(2)(b) and then fled. § 87(2)(b) called 911 to report the crime.

PO Rayon Grant (hereafter referred to as POM Grant) and PO Tricia Grant (POF Grant) of the 46th Precinct responded. They joined § 87(2)(b) inside § 87(2)(b)'s apartment and recorded what information § 87(2)(b) was able to provide. They instructed § 87(2)(b) to contact them again when § 87(2)(b) who could provide further information about § 87(2)(b) returned. The officers then departed.

At approximately 7:30 PM § 87(2)(b) and her children returned home from a daytime party at which § 87(2)(b) had consumed two mixed alcoholic beverages. Upon her return, § 87(2)(b) called 911 to request that the officers return to complete the report. The officers returned to the location and requested that § 87(2)(b) meet them outside of the building. Outside, § 87(2)(b) spoke with the officers, who remained inside their RMP. However, the officers, who believed they had all of the information they required regarding the perpetrator, drove away while § 87(2)(b) who believed the officers required further information, was attempting to provide it.

§ 87(2)(b) returned to her apartment and informed § 87(2)(b) of what had occurred. § 87(2)(b) subsequently called 911 multiple times to request that the officers return to complete the report. These calls were marked as duplicates of the original event. However, the job eventually then came over the air as a family dispute, requiring the officers to respond.

At approximately 8:56 PM, POM Grant and POF Grant responded to the location a third time and ascended to the hallway of § 87(2)(b)'s apartment. The officers stood in the hallway while § 87(2)(b) and § 87(2)(b) stood just inside the doorway of the apartment. POM Grant asked § 87(2)(b) why he had called 911 so many times, and § 87(2)(b) responded that he believed the officers had failed to complete their report. POF Grant allegedly removed her phone from her pocket and told § 87(2)(b) and § 87(2)(b) that she was going to call the Administration for Children's Services (ACS) (**Allegation A**). POF Grant also allegedly said, "You are fucking neglecting your kids" (**Allegation B**). POM Grant then allegedly extended his foot across the threshold, placing it in front of the door so that § 87(2)(b) could not close it (**Allegation C**). When § 87(2)(b) asked POM Grant to move his foot from the doorway, POM Grant allegedly refused.

§ 87(2)(b) called 911 and reported that an officer had threatened to call ACS and that an officer refused to remove his foot from the doorway. POM Grant subsequently removed his foot from the doorway, allowing § 87(2)(b) to close the door. The officers called their supervisor, Sgt. Patrick Fyvie of the 46th Precinct, who then responded to the location with his operator, PO Jason Levy of the 46th Precinct. Sgt. Fyvie spoke briefly with POM Grant and POF Grant, who then departed and resumed patrol. Sgt. Fyvie spoke briefly with § 87(2)(b) and § 87(2)(b) and recorded the information that they wished to provide. Finally, Sgt. Fyvie and PO Levy departed. Neither § 87(2)(b) nor § 87(2)(b) was arrested or issued a summons.

§ 87(2)(b) and § 87(2)(b) later learned from their neighbor, § 87(2)(b) who resided across the hall from § 87(2)(b) that she had witnessed part of the incident by observing the interaction through the peephole of her apartment door.

Mediation, Civil and Criminal Histories

- Both § 87(2)(b) and § 87(2)(b) elected to mediate this case and it was submitted to the mediation unit on March 7, 2016. However, the officers declined to mediate, and the case was returned for investigation on April 1, 2016.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
- On April 29, 2016 the Office of the Comptroller informed the undersigned that neither § 87(2)(b) nor § 87(2)(b) has filed any notice of claim in regards to this incident.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving either § 87(2)(b) or § 87(2)(b)
- POF Grant and POM Grant have been a subject in one previous CCRB case each, § 87(2)(g) [REDACTED]. No allegations made against either officer have been substantiated.

Potential Issues

- § 87(2)(b) did not provide a verified statement to the investigation. § 87(2)(b) provided a detailed phone statement on April 4, 2016, but stated that she was not willing visit the CCRB's office. § 87(2)(b) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Findings and Recommendations

Allegations not pleaded

- **Force:** § 87(2)(g) [REDACTED] § 87(2)(b) (Board Review 01) stated that when § 87(2)(b) returned to her apartment after meeting with the officers outside of

- the building, § 87(2)(b) told him that the officers had pushed her against the RMP. § 87(2)(b) (Board Review 02), however, did not corroborate this second-hand allegation and, in fact, denied ever having made any such allegation to § 87(2)(b).
- **Abuse of Authority:** § 87(2)(g). While POM Grant (Board Review 03) stated that it was he who made the alleged threat, neither § 87(2)(b) nor § 87(2)(b) alleged that he did so, and further, POF Grant (Board Review 04) acknowledged that it was she who made the threat.

Allegation A—Abuse of Authority: Police Officer Tricia Grant threatened to notify the Administration for Children’s Services.

§ 87(2)(g) . According to them, when POF Grant and POM Grant returned to the hallway outside of § 87(2)(b) s apartment at 8:56 PM—the final interaction between the complainants and the officers—§ 87(2)(b) and § 87(2)(b) stood in the doorway of the apartment, next to one another, while the officers stood in the hallway, just outside of the doorway. POM Grant asked § 87(2)(b) why he had placed so many calls to 911, and § 87(2)(b) responded that the officers had failed to collect all of the information that § 87(2)(b) and § 87(2)(b) needed to provide. POM Grant said that they had all the information they needed. § 87(2)(b) asked if the officers had the address where § 87(2)(b) the perpetrator, resided, and POM Grant said that they did not. § 87(2)(b) told the officers that when § 87(2)(b) was going to provide that information, the officers drove away. POM Grant looked at § 87(2)(b) and asked, “Are you intoxicated?” § 87(2)(b) said that she had been drinking earlier in the day, with § 87(2)(b) but was sober at that time. POM Grant asked if there were children in the apartment. § 87(2)(b) said that there were. POM Grant turned to § 87(2)(b) and asked how old the children were. § 87(2)(b) said that the ages of the children were not the officers’ concern. POF Grant, standing next to POM Grant, took her phone from her pocket and began to yell that she was going to call ACS. According to § 87(2)(b) POF Grant said that § 87(2)(b) was neglecting her children. According to § 87(2)(b) POF Grant said that there was going to be an ACS case and that ACS would take § 87(2)(b) s children from her. POF Grant yelled loudly and appeared to be pressing buttons on her phone, but § 87(2)(b) did not know with certainty what she was doing with the phone. § 87(2)(b) asked, “Why?” but POF Grant only continued to yell that she was going to call ACS.

According to § 87(2)(b) and § 87(2)(b) § 87(2)(b) consumed two mixed beverages over the course of the afternoon. § 87(2)(b) described § 87(2)(b) as sober.

POF Grant testified that when she and POM Grant initially visited § 87(2)(b) s apartment, at 6:30 PM, § 87(2)(b) informed the officers that § 87(2)(b) was with her children and a friend. POF Grant asked § 87(2)(b) to call § 87(2)(b) and he did so. § 87(2)(b) hung up the phone immediately. § 87(2)(b) called § 87(2)(b) a second time, but § 87(2)(b) refused to provide any information about her ex-boyfriend. The call was not on speakerphone, but POF Grant was able to hear § 87(2)(b) yelling. § 87(2)(b) informed the officers that § 87(2)(b) always acted that way when intoxicated. § 87(2)(b) terminated the call a second time. § 87(2)(b) did not provide any additional information about § 87(2)(b) s intoxication and POF Grant did not inquire further. The statement did not concern POF Grant at that time. POF Grant instructed § 87(2)(b)

§ 87(2)(b) to call them back if § 87(2)(b) returned home or provided the information. The officers then left the apartment and went downstairs.

The officers returned to their RMP. As POF Grant was writing the complaint report, seated on the passenger's side, § 87(2)(b) arrived outside of the building. § 87(2)(b) was with her children, who both appeared to be nine or ten years old. Nothing about the children's appearances concerned POF Grant. § 87(2)(b) approached the passenger's side of the RMP, with her children, and asked the officers what was going on. The window was completely rolled down. POF Grant informed § 87(2)(b) that the officers were at the location at the request of § 87(2)(b) and that she believed that § 87(2)(b) already had informed her of what had taken place. POF Grant then asked § 87(2)(b) for information regarding § 87(2)(b) but § 87(2)(b) stated that she was not going to tell the officers anything and POM Grant began to pull away. As the RMP pulled away § 87(2)(b) said, "Fuck y'all." This interaction was the only time that POF Grant saw § 87(2)(b)'s children.

Based on § 87(2)(b)'s belligerent behavior and § 87(2)(b)'s earlier statement that § 87(2)(b) was intoxicated, POF Grant believed at that time that § 87(2)(b) was intoxicated. According to POF Grant, § 87(2)(b)'s eyes were slightly watery, but she did not remember § 87(2)(b)'s speech being slurred. She did not smell the odor of alcohol on § 87(2)(b)'s breath.

Between 7:30 and 8:00 PM, the officers received a radio communication requesting that they return to the location to speak with the complainant. The officers returned to the location and telephoned § 87(2)(b) from the street outside of the building. They asked that someone come down to provide further information for § 87(2)(b)'s ex-boyfriend. § 87(2)(b) exited the building and approached the officers' RMP. She provided her ex-boyfriend's name but did not know his date of birth or address. However, § 87(2)(b) then again swore at the officers and returned inside. The officers again departed.

Either § 87(2)(b) or § 87(2)(b) called 911 shortly thereafter. POF Grant told the dispatcher that the job was a duplicate and that there was no need for the officers to return to the location. Two further calls placed by either § 87(2)(b) or § 87(2)(b) led to the same result. POF Grant felt that she and her partner had obtained all of the information that § 87(2)(b) and § 87(2)(b) could provide and therefore that she and her partner did not need to return to the location.

However, when the job came over the air at 8:56 PM, it was listed as a family dispute, which required that the officers respond and prepare a report. The officers returned to § 87(2)(b)'s building and ascended to the hallway of § 87(2)(b)'s apartment. § 87(2)(b) opened the door and § 87(2)(b) then joined him. POF Grant asked what was going on and why § 87(2)(b) or § 87(2)(b) had continued to call 911. POF Grant described § 87(2)(b) and § 87(2)(b)'s demeanors as generally "hostile," but she could not point to any specific behavior on their part which demonstrated this. According to POF Grant, during this final interaction neither officer asked § 87(2)(b) if she was intoxicated. However, § 87(2)(b) continued to exhibit the same signs which had previously led POF Grant to assume that she was intoxicated. POM Grant stated that § 87(2)(b) smelled of alcohol and appeared to be off-balance. According to POF Grant, she told § 87(2)(b) and § 87(2)(b) that she was aware that § 87(2)(b) was intoxicated. POF Grant then asked if this was a situation which required that the officers contact ACS. POF Grant

did not remember if she removed her phone at this time. Ultimately, POF Grant did not notify ACS in regards.

When asked what factors prompted her to ask if ACS should become involved, POF Grant cited the following: § 87(2)(b) resided in the apartment with her children; § 87(2)(b) had already revealed that § 87(2)(b) was intoxicated; § 87(2)(b) had repeatedly called 911; and § 87(2)(b) did not live in the apartment, which could have created a hazardous condition for the children if he were to depart and leave § 87(2)(b) alone with the children. In addition, it appeared to POF Grant that § 87(2)(b) was at the apartment to see § 87(2)(b) and not to care for the children. POF Grant knew that § 87(2)(b) was not the father of the children. When questioned, POF Grant revealed that she did not actually know whether it was § 87(2)(b) or § 87(2)(b) who had repeatedly called 911. However, she believed that it was § 87(2)(b) and this raised her concerns. To POF Grant's knowledge, § 87(2)(b) and § 87(2)(b) had been present together in the apartment since § 87(2)(b) returned home. When asked if any other conditions—such as the condition of the children or of the apartment—led POF Grant to believe that the situation could require notifying ACS, POF Grant stated that neither the condition of the children nor that of the apartment independently warranted notifying ACS. She described the apartment, the interior of which she saw when she and POM Grant initially responded to take the report from § 87(2)(b) was “messy, but not disgusting.” Ultimately, POF Grant did not refer § 87(2)(b) or her children to ACS. Neither POF Grant nor POM Grant believed that § 87(2)(b) was guilty of any arrestable or summonsable offense in regards to the treatment of her children.

Audio from a 911 call placed by § 87(2)(b) at approximately 6:30 PM (Board Review 05) reveals that § 87(2)(b)'s speech was, in fact, slurred, and that § 87(2)(b) sounded audibly intoxicated at that time.

NYPD Patrol Guide Procedure 215-03: Emergency Removals Or Investigation And Reporting Of Abused, Neglected, Or Maltreated Children (Board Review 06) defines a “neglected child” as a child less than eighteen years of age whose physical, mental or emotional condition has been impaired or is in imminent danger of becoming impaired as a result of the failure of his parent or other person legally responsible for his care to exercise a minimum degree of care in providing the child with proper supervision or guardianship, by unreasonably inflicting or allowing to be inflicted harm, or a substantial risk thereof, including the infliction of excessive corporal punishment; or by misusing a drug or drugs; or by misusing alcoholic beverages to the extent that he or she loses self-control of his actions; or by any other acts of a similarly serious nature requiring the aid of the court.

Patrol Guide Procedure 215-03 continues that if probable cause exists that a crime has been committed against a child by a family member, the responding member of service is to: arrest any and all perpetrators; notify a patrol supervisor; prepare a domestic incident report; remove the child to the officer's command; and, finally, notify the Administration for Children's Services.

§ 87(2)(g)

§ 87(2)(g) [REDACTED]

POF Grant initially interacted with § 87(2)(b) on the street outside of the building, approximately two hours prior to the final interaction in question. § 87(2)(g)

[REDACTED]

§ 87(2)(g) [REDACTED]

[REDACTED] it is recommended that **Allegation A** be closed as **substantiated**.

Allegation B—Discourtesy: Police Officer Tricia Grant spoke discourteously to § 87(2)(b)

[REDACTED]

§ 87(2)(b) testified that POF Grant said, “You are fucking neglecting your kids” to § 87(2)(b). While § 87(2)(b) did not allege that POF Grant used the word “fuck,” she stated that POF Grant told her that she was neglecting her children.

POF Grant, for her part testified that she did not say, “You are fucking neglecting your kids,” and, further, that she used no profanity whatsoever during the incident. POM Grant also stated that POF Grant never uttered this phrase, or used the word “fuck” or any other profanity.

§ 87(2)(b) stated that she did not recall whether she ever heard either officer use any profanity.

Sgt. Fyvie, who responded to the location after the alleged discourtesy, testified that he never learned that POF Grant said, “You are fucking neglecting your kids” and that neither § 87(2)(b) nor § 87(2)(b) told him that POF Grant had made this remark or used any profanity. Likewise, PO Levy stated that during the conversation which he observed between § 87(2)(b) and Sgt. Fyvie, neither civilian complained that POF Grant had used profanity.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation C—Abuse of Authority: Police Officer Rayon Grant entered § 87(2)(b), in the Bronx.

§ 87(2)(b) and § 87(2)(b) stated that after POF Grant threatened to call ACS, POM Grant extended a leg across the threshold of the apartment door and placed his foot in front of the door—which swung inward, into the apartment—so that § 87(2)(b) could not close the door. When § 87(2)(b) asked POM Grant to move his foot, POM Grant allegedly told § 87(2)(b) that if § 87(2)(b) wanted POM Grant to move, § 87(2)(b) would have to move him. According to § 87(2)(b) and § 87(2)(b) POM Grant did not remove his foot from the doorway until § 87(2)(b) dialed 911 to report that an officer had placed his foot in the doorway and refused to remove it. Once POM Grant removed his foot, § 87(2)(b) closed the door.

POM Grant admitted that his foot was in the doorway, but disputed several details. According to POM Grant, when he and his partner returned to the hallway of § 87(2)(b)'s apartment and knocked on the door, § 87(2)(b) answered. POM Grant did not wish to speak with § 87(2)(b) because of their previous encounters and because he believed she was still intoxicated. She smelled of alcohol and appeared to be off-balance. POM Grant stepped forward slightly and leaned through the doorway of the apartment, looking for § 87(2)(b). § 87(2)(b) then came to the door and stepped in front of § 87(2)(b). A conversation, which is addressed in greater detail above, in the analysis of Allegation A, ensued. § 87(2)(b) then told the officers that § 87(2)(b) alleged they had pushed her against the RMP, outside of the building (addressed above in Allegations not Pleaded). In light of this allegation, POM Grant decided to summon his supervisor, Sgt. Fyvie, and informed § 87(2)(b) that he was doing so. § 87(2)(b) said that he too was going to request the presence of a supervisor, by calling 911.

According to POM Grant, § 87(2)(b) began to dial on his cell phone. As he did so, he attempted to slam the door shut. The door made contact with POM Grant's foot, and did not close. POM Grant realized only then that his foot had been on the threshold, and not in the hallway. According to POM Grant, his foot placement had not been intentional. When he leaned into the apartment earlier, to look for § 87(2)(b) he had not purposely placed his foot on the threshold. He did not move his foot into the doorway in order to prevent the door from closing. Neither § 87(2)(b) nor § 87(2)(b) had made any previous request that POM Grant move from the doorway or made any previous attempt to close the door. POM Grant believed that no one

present, himself included, had realized that his foot was blocking the door, prior to the door making contact with his foot. When § 87(2)(b) asked POM Grant to move from the door, POM Grant did not make any statement to the effect that § 87(2)(b) would have to move him. § 87(2)(b) told POM Grant to move, and POM Grant stepped back, out of the threshold. § 87(2)(b) then slammed the door shut.

Audio of § 87(2)(b)'s final 911 call (Board Review 08 for audio file; Board Review 09 for transcript) reveals that when he called 911, he stated that an officer had placed his foot in the door and refused to remove it. Thirty-eight seconds later he says, "Take your foot out the door."

It is established in *People v. Reese*, 799 N.Y.S.2d 163 (2004) (Board Review 10) that the Fourth Amendment has drawn a firm line at the entrance of the house, and that absent exigent circumstances, that threshold may not reasonably be crossed without a warrant.

It is also documented in *People v. McBride* 14 N.Y.3d 440 (2010) (Board Review 11) that absent a warrant, officers may enter a premises in an emergency or given the existence of exigent circumstances. Additionally, it has been established that officers may make warrantless entry given the consent of the resident(s) of the location being entered *People v. Brown*, 651 N.Y.S.2d 981 (1996) (Board Review 12). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is recommended that **Allegation C** be closed as **substantiated**.

Squad: 1

Investigator: _____

Signature Print Date

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CCRB Case # 201601417

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date